

This is a mock Trademark legal notice drafted in accordance with the Trademark Act, 1999. No actual trademark registration or filing has been made.

Notice of Opposition of Trademark Application for “RiceRiser”(Form TM-O)

To,
Registrar of Trademarks
Office of Trademark Registry
Mumbai, Maharashtra
400001- India

CookSmart Pvt. Ltd.
456 Tech Street,
Mumbai, Maharashtra
400002- India

Opposition on Application No. 1234567 for the mark “RiceRiser” in Class 11, published on January 1, 2025, in the Trade Marks Journal. A filing fee of INR 2,700 has been notionally paid for this opposition (mock context).

The undersigned CookSmart Pvt. Ltd., hereby opposes the registration of the trademark “RiceRiser” under Application No. 1234567.

1. The mark “RiceRiser” is confusingly similar to the opponent’s registered trademark “CookRice” under class 11, likely to deceive or cause confusion, contrary to section 11(1) of the Trademarks Act, 1999.
2. The registration of “RiceRiser” would dilute the distinctive character and goodwill of “CookRice,” which has been in use since 2019 and has annual sales of INR 1 Crore from 2019–2024 and advertised in The Hindu (January 2023 edition), as evidenced in Annexure A.
3. The application for registration has been done in bad faith as the applicant (RiceRiser Tech Pvt. Ltd.) was aware of the opponent’s prior rights in “CookRice”, contravening section 11(10) of the Trademarks Act, 1999.

Supporting Evidence:

Attached as Annexure A is evidence of prior use, including sales records and advertisements.

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I, XYZ Kumar, verify that the statements in the paragraphs are true to my knowledge and that I believe them to be true.

Signed on April 5, 2025, in Mumbai.

XYZ Kumar

Legal Representative

CookSmart Pvt. Ltd.